NewsBank inc.

California Publishes Legislative Intent To Push Compliance Date For VCMDA

January 30, 2024 | Mondaq.com (UK)
Author: Jordyn Milewski (Frankfurt Kurnit Klein & Selz)rn| Section: News | 340 Words
OpenURL Link

As expected, California's Assembly Daily Journal has just published a letter of legislative intent regarding the compliance date for California's new Voluntary Carbon Market Disclosures Act.

The new law (which requires advertisers to include specific disclosures on their websites when making certain types of carbon emissions claims) took effect on January 1, 2024. But, at the end of 2023, the bill's sponsor, Assembly Member Jesse Gabriel, explained in a letter that his intent was that the first set of required disclosures would actually be posted by January 1, 2025. He noted that he intended to submit a formal letter indicating that intent when the California Assembly reconvened. That letter has just been published (available here, on page 3766) with a note that unanimous consent was granted to publish this statement of legislative intent:

"I write to express my intent in authoring Assembly Bill (AB) 1305 related to voluntary carbon offsets. AB 1305 will impose disclosure obligations on certain covered entities that operate in California and make certain claims regarding their climate objectives. While the bill does not specify the date on which the first set of disclosures must be posted to a company's internet website, it was my intent that the first annual disclosure be posted by January 1, 2025. This deadline provides reporting entities with sufficient time to align their

business practices with the stated objectives of AB 1305 prior to

being subject to potential civil fines. Thank you for the

opportunity to clarify the intent of AB 1305."

As we've noted in prior posts, these types of letters are apparently often used in California to express

legislative intent.

So, while many marketers have been scurrying to get their VCMDA

disclosures up on their websites, they now seemingly have some

extra time to do so.

The content of this article is intended to provide a general

guide to the subject matter. Specialist advice should be sought

about your specific circumstances.

Jordyn Milewski (Frankfurt Kurnit Klein & Selz)

Global Advertising Lawyers Alliance (GALA)

488 Madison Avenue 10th Floor

New York

NY,10022

UNITED STATES

Tel: 212705 4895

Fax: 347438 2185

E-mail: sbess@galalaw.com

URL: www.galalaw.com

Click Here for related articles

(c) Mondaq Ltd, 2024 - Tel. +44 (0)20 8544 8300 - http://www.mondaq.com

Copyright © 1994-2022 Mondaq ® Ltd. All rights reserved. Provided by SyndiGate Media Inc. (Syndigate.info).

Copyright © 2024 Al Bawaba (Mondaq.com)

- **Citation (apa Style)**
  Milewski (Frankfurt Kurnit Klein & Selz)rn, J. (2024, January 30). California Publishes Legislative Intent To Push Compliance Date For VCMDA. *Mondaq.com (UK).* Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/196E4BB2E0502010.